

IN THE FAMILY DIVISION
SECOND JUDICIAL DISTRICT COURT

HON. MASTER ALISON TESTA

FILED
Electronically
JV24-00105
2024-03-26 08:46:02 AM
Alicia L. Lerud
Clerk of the Court
Transaction # 10238986

REPORTER: CD/JAVS – Hearing Room C CLERK: M. Fiala

Case No. JV24-00104 JUVAB: EVAKAY BALDES Initial Filing Date: 1/23/2024

Case No. JV24-00105 JUVAB: ALEXIS CLARK Initial Filing Date: 1/23/2024

Hearing Date: 3/20/2024 Scheduled Start Time: 14:00:00

Case Type: JUV - ABUSE/NEGLECT

Event: DISPOSITIONAL HEARING - ZOOM; AVD; RE: MR. CLARK and ADJ AND DISPO AS TO MR. BALDES ONLY

Minor Party Information:

MINR EVAKAY BALDES - @1412997 N/P Waived

DOB: 10/19/2009 (14)

MINR ALEXIS CLARK - @1413001 N/P Waived

DOB: 2/24/2014 (10)

ICWA Status: NO

Tribal Affiliation: None

Other Party Information:

PETR WASHOE COUNTY HUMAN SERVICES AGENCY - WCHSA

MOTH MEGAN MCCAFFERTY - @1299452 DOB: 8/25/1991 (32) N/A

FATH DONOVAN CLARK - @1299453 DOB: 3/20/1985 (38) ☒ Zoom

FATH JUSTIN BALDES - @1413000 DOB: 10/3/1990 (33) ☒ Zoom

☒ DA Tyler E. Beach, Esq. – 10578 - Zoom

☒ APD Tirzah Mathews, Esq. – 11647 - Zoom

N/A PD Christine S. Sullivan, Esq. – 5073 - Zoom

☒ ATTY Jennifer Jeans, Esq. – 10481 - Zoom

☒ ATTY Neil E. M. Grad, Esq. – 672 - Zoom

Social Worker: Jennie Ballou - Zoom Others Present: _____

☐ PARTIES SWORN.

PETITION:

☐ AMENDED: _____

Justin Baldes : ☐ ADMIT ☒ SUBMIT ☐ DENY ☐ SEE MFR FILED HEREIN

_____ : ☐ ADMIT ☐ SUBMIT ☐ DENY ☐ SEE MFR FILED HEREIN

☐ OFFER OF PROOF MADE ☒ OFFER OF PROOF WAIVED

☒ PETITION SUSTAINED UNDER NRS 432B WITH A FINDING OF:

☐ ABUSE ☒ NEGLECT ☐ UNAVAILABILITY ☐ ABUSE/NEGLECT OTHER CHILD ☐ BASIC NEEDS ☐ OTHER _____

FINDINGS:

☐ COURT HAS JURISDICTION IN THIS MATTER PURSUANT TO NRS432B AND NRS 125A.

☐ BASED UPON SWORN TESTIMONY ☐ MOTHER ☐ FATHER ☐ _____ IS FOUND TO BE
INDIGENT AND COUNSEL IS APPOINTED.

☐ REASONABLE EFFORTS MADE PER NRS432B.393

☐ REASONABLE EFFORTS TOWARD REUNIFICATION NO LONGER REQUIRED

☐ AS INCONSISTENT WITH PLAN ☐ RE: _____

☐ CURRENT PLAN AND PLACEMENT IN _____ APPROVED

☐ NOTICE OF HEARING PROPERLY SERVED

☐ ICWA NOT APPLICABLE AND TO ADVISE IF THIS CHANGES

☐ AMENDMENTS:

ORDERS:

☐ WCHSA ☐ LEGAL CUSTODY ☐ PHYSICAL CUSTODY

☒ MOTHER ☒ FATHER(S) ☐ OTHER: _____ ☒ COMPLY WITH CASE PLAN & SERVICE AGREEMENT

☐ Subject to Court review ☒ Updated upon receipt of recommendations and Mr. Clark's to be
updated to address DV issues.

☐ REC. ADOPTED ☒ REC. ADOPTED AS AMENDED ON THE RECORD

☒ AMENDMENTS: As stated by the Court and DDA Beach

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[X] PARENTS TO SUBMIT FINANCIAL STATEMENT/COST OF CARE [] WAIVED [X] ORDERED – Set at zero as of 1/23/24
[] CASA APPOINTED [] CASA RELIEVED
[] COUNSEL FOR _____ RELIEVED
[] DISCRETION TO CLOSE BY LETTER REPORT AND ORDER
[] CUSTODY ORDER TO BE OBTAINED
[] WCHSA OFFER MAINTENANCE AND SPECIAL SERVICES TO MINOR CHILD(REN) AFTER AGE 18 PURSUANT TO NRS 432.030
[] WCHSA MAY CONSENT TO NECESSARY AND/OR EMERGENCY MEDICAL/DENTAL TREATMENT FOR CHILD(REN).
[] [] MOTHER [] FATHER(S) [] OTHER: SHALL PROVIDE WCHSA WITH IDENTIFYING INFORMATION,
INCLUDING NAME, ADDRESS AND PHONE NUMBER OF ANY RELATIVES
[] ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN EFFECT
[] VISITATION AS OUTLINED IN THE MFR FILED HEREIN
[] PERMISSION TO RECRUIT:
[] ADDITIONAL ORDERS:
[] PLR GRANTED
[] CASE DISMISSED
[] GUARDIANSHIP GRANTED PURSUANT TO NRS 432B.466-468
[] REUNIFIED [] OTHER:

PERMANENCY PLAN:

[] REUNIFICATION
[] APPLA
[] TERMINATION OF PARENTAL RIGHTS/RELINQUISHMENT [] ADOPTION
[] CONCURRENT PLANNING/REUNIFICATION [] _____
[] GUARDIANSHIP
[] OTHER _____
[] ESTIMATED DATE OF COMPLETION _____
[] COMPELLING REASONS NOT TO TPR APPROVED
[] AS IN REPORT [] AS STATED ON THE RECORD
[] REASONABLE EFFORTS TO FINALIZE PERMANENCY PLAN HAVE BEEN MADE
[] AS IN REPORT [] AS STATED ON THE RECORD

NEXT HEARING:

[] CONTINUED TO: _____ FOR: [] ADJ/DISPO [] OTHER: _____
[X] REVIEW HEARING: 7/10/24 at 1:30 FOR: [X] SEMI [] PERM [] HRG CHG PLAN [] OTHER: _____
[X] REVIEW HEARING: 1/8/25 at 3:00 FOR: [] SEMI [X] PERM [] HRG CHG PLAN [] OTHER: _____
[] MEDIATION: _____ [] SETTLEMENT CONFERENCE: _____
[] EVIDENTIARY: _____
[] ADDITIONAL INFORMATION: _____

Grad – His client, Mr. Baldes, will be submitting.

Mr. Baldes was sworn.

Court – Canvassed Mr. Baldes.

Court recessed to allow Mr. Baldes time to consult with counsel. Court reconvened.

Grad – Asked that his client continue to be canvassed.

Court – Canvassed Mr. Baldes and sustained the petition.

Grad – Waived offer of proof.

All parties and counsel indicated receipt of the dispositional report and case plan.

The Clerk's minutes are not an order of the Court, and may be altered, amended or superseded by a written order. Parties/Counsel may obtain a copy of the JAVS recording of any proceeding through the Second Judicial District Court Resource Center located at 1 S. Sierra Street, Third Floor Reno, Nevada 89501. If the matter was reported via Court Reporter, a transcript must be requested directly from the Court Reporter.

Clerk: M. Fiala Print Date: 3/26/2024
Deputy: N/A – Hearing held by Zoom

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JV24-00104 105
Page 3

S/W – The children are doing well in their placement and are adjusting. This worker has covid so missed meeting the children this week, but they seem to be doing well. The FEC says visits are going very well and the center is only being used for checking in and checking out and after a few weeks they may be able to move visits to the community. Mr. Clark completed the partial hospital program at the VA on 2/23 and Mr. Clark is attending a 12-week intensive outpatient program MWF and is testing three times a week and is negative except for cannabis. The department chief of the VA sent a letter indicating Mr. Clark is motivated to maintain his sobriety and is effectively utilizing available treatments to stay sober and he is seeing a psychologist to address his mental health issues and has returned to work part time as of the beginning of March and the VA is assisting Mr. Clark and the mother in couples counseling but there have been some setbacks on that. They are planning on a couples retreat April 19 and 20th and report they are using a daily counseling app to communicate more effectively and reconnect. This worker has spoken with Mr. Baldes asking that he provide a letter to start a conversation with Eva. There is a CFT on 4/1/24 and a home visit scheduled for 4/3/24 and a HSSS is involved, providing assistant with cleaning and providing the family a dumpster.

Jeans – Her client, the girls, report that they are doing well in their placement. Alexis met a friend in the complex where they reside and was able to visit with that friend. The girls report school is going well. Both girls wish to reunify and feel reunification could happen as soon as now. Evakay was very insightful and had no objection to going to her grandmother's house and felt it was kind of necessary for her parents to have a wakeup call in regard to their relationship and Mr. Clark's struggles but at this stage feel they have been proactive to address the issues and Mr. Clark is in treatment and feels things are on the right track and it would be safe to return home. Evakay is not interested in developing a relationship with Mr. Baldes at this time. Counsel appreciates the steps the parents are taking.

Court – Sounds like a very mature and insightful teenager.

APD – Counsel met with her client, Mr. Clark, and Ms. Ballou over several meetings, and he is engaged and invested in the process. Her client is getting started on his case and case plan requirements early in the process, starting the partial hospitalization 1/25/24 and attended 19 out of 21 sessions and the program head indicated he was engaged and active in his groups and the 2 missed sessions he communicated with the program. The program recommends the completion of his IOP, and this will entail group therapy 3 days a week and a 12 week course where he is drug testing twice a week with the VA and engage in medication and case management as needed. Her client started that program on 3/4/24 and returned to work part time as indicated. Her client was working for Sparks Electric Motor for about a year before he decided to put himself inpatient and he returned to the same company. Her client has a bachelor's in computer science and has paid off his house. There is a dumpster planned for 4/3 to finalize cleaning up the house, getting ready for the children's return and counsel congratulates him.

Mr. Clark – He does take an extra drug test on Wednesday, as requested by the Court, so he is tested three times a week.

Court – Commended Mr. Clark on all his hard work and getting off to a good start. Noted in Mr. Clark's case plan, part of the goal is control impulses in regard to substance abuse and DV and the only thing listed on that part, is attending the Effects of Violence workshop, the Court wishes to know how the DV is being addressed.

S/W – The Warrior to Soul Mate class has some of those components in the class, the matter is more as to what the VA provides and how that translates but they can add more to that. Currently this worker is familiar with what they provide and there is a plan to explore that.

Court -DV needs to be addressed as it is in any other case, the Court needs to know they are being addressed.

Grad – His client, Mr. Baldes, is doing fine, steadily employed and does not feel he has been inconsistent in paying the child support and has written documentation of paying over \$40,000 in child support. Also, there is not a lifelong restraining order against him, it was one year, it ended 11 years ago. His client would like the opportunity to get to know his daughter and hopes that she feels the same and that would be left up to the Agency and the therapeutic services they provide to Evakay. Counsel will allow his client to speak.

Mr. Baldes – Everything has been addressed.

Court – Understanding that he wishes to have a relationship with Evakay, but with therapy and services, her view may change, the Court does appreciate the father meeting her where she is at.

DA – The only requested change to the proposed findings and recommendations is to not make and findings and recommendations as to Ms. McCafferty.